1654 Burdette Dr, San Jose, CA 95121 · (408) 408-1654 · crownprincehall@gmail.com

This Agreement is entered into by and between **Crown Prince Hall Corporation** (CA Entity No. B20260164272), d/b/a Crown Prince Event Hall ("Venue"), and the undersigned client ("Client") as of the signature date below. This Agreement gives Client permission to use the Venue for the event described below. It is not a lease and creates no tenancy.

EVENT DETAILS

EVENT DATE _____ EVENT TYPE _____

SET-UP _____ EVENT TIME _____ LOAD-OUT _____

CLIENT NAME _____ PHONE _____

EMAIL _____ EXPECTED GUESTS _____

LEGAL OCCUPANCY _____ MUSIC / AMPLIFIED SOUND ENDS BY _____ ALCOHOL ☐ No ☐ Yes

APPROVED AREAS

☐ Indoor only ☐ Other: _____

1. Assumption of Risk

CLIENT INITIALS _____

Client understands that events may involve dancing, food, alcohol if approved, vendors, entertainment, equipment, loading, sound, lighting and social activity. Client voluntarily assumes the ordinary risks connected to the event, Client's guests and Client's vendors, and is responsible for supervising minors.

2. Release of Liability

CLIENT INITIALS _____

To the fullest extent permitted by law, Client releases Venue, its owners, managers, employees, agents, contractors, landlord and affiliates from claims arising from the event — including claims Client does not know about at signing. Client waives California Civil Code § 1542, which reads: "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party." This release does not apply to gross negligence or willful misconduct by Venue, or to any right that cannot be waived by law. [CALIFORNIA COUNSEL REVIEW — confirm §1542 waiver & release scope]

3. Indemnification

CLIENT INITIALS _____

Client will defend and indemnify Venue, its representatives and its landlord from claims, losses, damages, injuries, fines, costs and attorney fees caused by Client, guests, vendors, invitees or Client's breach of this Agreement.
[CALIFORNIA COUNSEL REVIEW — indemnity scope]

4. Compliance with Laws and Venue Policies

CLIENT INITIALS _____

- No smoking or vaping indoors; permitted only in the designated outdoor area. No cannabis anywhere on the property.
- No illegal drugs, weapons, fighting, harassment, unsafe conduct or blocked exits.
- No gambling, betting or wagering anywhere on the property, including activities involving large amounts of cash.
- No firecrackers, fireworks, sparklers or pyrotechnics. No open flames, candles, fog, haze, glitter or confetti unless Venue approves in writing. Any false-alarm or emergency-response fee is charged to Client.
- No pets or animals except service animals required by law.
- Do not tamper with alarms, cameras, smoke detectors, sprinklers, climate controls, AV, security devices or fire equipment.
- Nothing may be nailed, screwed, stapled, taped or glued to walls, ceilings, floors or fixtures without written approval.

5. Alcohol Policy

CLIENT INITIALS _____

Alcohol is allowed only with Venue's written approval. Venue does not sell, furnish or serve alcohol unless a signed add-on says otherwise. Client is responsible for lawful service — no service to minors or visibly intoxicated persons, and licensed or authorized servers where required. Drinking is allowed only within designated, approved venue/courtyard areas, never in the parking lot.

- Alcohol may not be sold. No cash bar, no donations or suggested contributions for drinks, and no ticket or admission price that includes drinks — unless Client's caterer holds a valid California ABC catering license for the event date and gives Venue a copy at least 10 days before the event. `[CALIFORNIA COUNSEL REVIEW — ABC pathway]`
- Where alcohol is served, Venue requires licensed security of one guard per 75 guests, with a minimum of two guards (unless another ratio is stated). `[VERIFY WITH SOURCE DOCUMENT — confirm ratio is approved business rule]`
- If alcohol rules are violated, Venue may stop service or end the event without refund.

6. Food, Vendors, and Production

Food, catering, food trucks, DJs, performers, rentals, décor, production and outside equipment must be disclosed and approved before the event. Vendors must follow health, fire, sanitation, permit, insurance, loading, power and noise rules.

- Caterers and food trucks must hold a current Santa Clara County health permit for the event date and give Venue a copy at least 10 days before the event.
- Every vendor must carry liability insurance and provide certificates at least 30 days before the event. Client is responsible for its vendors.
- Venue does not accept, store or secure deliveries. `[VERIFY WITH SOURCE DOCUMENT — confirm this matches actual operations]`

7. Access, Capacity, Noise, and Overtime

- Your booked time includes load-in, setup, event, cleanup, breakdown and load-out. Your booking includes a 6-hour event window plus 2 complimentary setup hours before it.
  `[MANAGEMENT DECISION REQUIRED — align contract wording with the rate card / website "2 complimentary setup hours"]`
- No early access or late stay without written approval. Overtime is billed at `[$____ ]` per hour or any part thereof; if no rate is stated, overtime is billed at 1.5× the hourly rental rate.
  `[MANAGEMENT DECISION REQUIRED — supply overtime rate, increment & grace period; confirm the 1.5× fallback is approved]`
- Guest count may not exceed legal occupancy or Venue-approved capacity, whichever is lower.
- Music and amplified sound must stay indoors with doors closed and end at the time in Event Details, or by 12:00 a.m. if none is listed. Outdoor amplified sound requires written approval. City of San Jose noise rules apply; any fine charged to Venue because of the event is Client's responsibility.

8. Damages

Client is responsible for damage, stains, spills, missing items, clogged plumbing, excessive cleaning, trash, overtime, unpaid charges, fines and property loss caused by Client, guests, vendors or invitees. Venue may deduct documented amounts from any security deposit held or invoice the Client for them, and will send Client an itemized statement within 14 days after the event. Any security deposit is security only and does not limit what Client owes. Venue is not responsible for lost or stolen property.

`[MANAGEMENT CONFIRMATION REQUIRED — the initial reservation deposit is credited to rent and is NOT a security deposit; confirm whether a separate refundable security/damage deposit is collected, and if so its amount and return timing]`

9. Right to Terminate Event for Safety and Compliance

CLIENT INITIALS _____

Venue, security, police, fire officials or authorities may deny entry, remove persons, stop alcohol service, reduce sound, close areas, suspend or end the event if needed for safety, compliance, property protection, non-payment, illegal activity, intoxication, violence, damage, capacity issues or material breach. If ended for breach, no refund is owed.

`[CALIFORNIA COUNSEL REVIEW — distinguish immediate safety action from curable breach; proportionality of "no refund"]`

10. Photo / Video Release

Any marketing use is limited to non-identifying images of room setups, décor and general atmosphere. Venue will not publish any image that identifies a guest, family member or staff member without that person's written consent.

☐ I authorize Venue to use event photos/video for marketing. ☐ I do **NOT** authorize marketing use.
If neither box is checked, Venue will not use images for marketing. This choice does not restrict security footage, incident documentation or legally required records.

11. Quote, Payment, Cancellation & Refund

CLIENT INITIALS _____

The signed quote, invoice or booking summary is incorporated into this Agreement. A booking is confirmed only after Venue receives the signed Agreement and the initial reservation deposit of **$1,000**. Changes require Venue's written approval.

Initial reservation deposit — credited to rent. The $1,000 deposit secures your event date and is **credited toward the total rental amount** in the approved quotation. It is not an additional charge; it is deducted from the total due in the payment summary below. It is not a security deposit and does not convert into one.

Cancellation of the reservation deposit. Cancellation must be in writing and takes effect when Venue receives it. The 14-day period begins on the date the deposit is paid.

- **Within the first 14 calendar days:** full refund of the $1,000 deposit — **$1,000 refunded**.
- **After the first 14 calendar days:** 20% of the deposit is refunded (**$200**) and Venue retains 80% (**$800**), subject to the final approved agreement and applicable law. `[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED — deposit retention as liquidated damages, Civ. Code §1671]`

Additional payments. The treatment on cancellation of any payments beyond the initial reservation deposit (rental installments and fees) is not set in this draft. `[MANAGEMENT CONFIRMATION REQUIRED]` `[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED]`

Refund processing & accounting. Refund timing is not stated as a binding deadline until approved `[MANAGEMENT CONFIRMATION REQUIRED]`. Every cancellation is reviewed individually to confirm payments received, refunds already issued, remaining refund obligations and amounts retained; retained amounts are not automatically classified as profit.

Rescheduling / date change. Terms not set in this draft. `[MANAGEMENT CONFIRMATION REQUIRED]`

Late or failed payment may cancel the booking. Overdue amounts: `[flat late fee — not set]`. `[MANAGEMENT CONFIRMATION REQUIRED]` `[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED — replace the 1%/month interest clause]` A returned check or transfer incurs $25 for the first instance and $35 after. `[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED — remove the "no-dispute" clause; add a dispute-first process]`

Quoted venue rental	$ `[____]`
Cleaning fee	$ 480.00
Security: $ ___ / hr × ___ hrs `[VERIFY WITH SOURCE DOCUMENT — security-fee basis]`	$ `[____]`
Package add-ons `[list]`	$ `[____]`
Other approved fees `[list]`	$ `[____]`
Discounts	$ (`[____]`)
Applicable CA sales tax (taxable items only) `[MANAGEMENT CONFIRMATION REQUIRED — per approved tax policy]`	$ `[____]`
Quoted rental total	**$ `[____]`**
Less: initial reservation deposit paid (credited to rental)	– $ 1,000.00
Remaining balance due — by `[date]` `[MGMT CONFIRM]`	**$ `[____]`**

Illustrative example (sample booking — shows the math only, not a quote): venue rent $5,190 + cleaning $480 + security $40/hr × 4 hrs ($160) – discount $2,595 = quoted total $3,235 (plus any applicable tax); less $1,000 reservation deposit credited = remaining balance $2,235.

Select payment type: ☐ Cash ☐ Check ☐ Zelle ☐ Credit Card (+3% fee) ☐ Other: _____
`[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED — 3% surcharge wording/disclosure; debit excluded]`
Make checks payable to: **Crown Prince Hall Corporation** (CA Entity No. B20260164272). The 3% fee applies to credit cards only, not debit cards.

12. Insurance

CLIENT INITIALS _____

Client must carry event liability insurance of at least $1,000,000 per occurrence and $2,000,000 in the aggregate for the rental period, plus host liquor liability of $1,000,000 if alcohol will be served. Crown Prince Hall Corporation, d/b/a Crown Prince Event Hall, and its landlord must be named additional insureds. A certificate of insurance is due at least 30 days before the event. Venue may hold access to the building until the certificate is received, and doing so is not a cancellation by Venue. These limits are minimums and do not limit Client's liability under Section 3.

13. Accessibility (California Civil Code § 1938)

Disclosure required by Civil Code § 1938 — check one:

`[VERIFY WITH SOURCE DOCUMENT — select only after the actual CASp status of 1654 Burdette Dr is confirmed]`

- ☐ The premises have **not** been inspected by a Certified Access Specialist (CASp).
- ☐ The premises **have** been inspected by a CASp and were determined to meet all applicable construction-related accessibility standards.
- ☐ The premises **have** been inspected by a CASp and were **not** determined to meet them.

A Certified Access Specialist (CASp) can inspect the subject premises and determine whether the subject premises comply with all of the applicable construction-related accessibility standards under state law. Although state law does not require a CASp inspection of the subject premises, the commercial property owner or lessor may not prohibit a lessee or tenant from obtaining a CASp inspection of the subject premises for the occupancy or potential occupancy of the lessee or tenant, if requested by the lessee or tenant. The parties shall mutually agree on the arrangements for the time and manner of the CASp inspection, the payment of the fee for the CASp inspection, and the cost of making any repairs necessary to correct violations of construction-related accessibility standards within the premises.

Client must keep accessible entrances, routes, restrooms and parking clear, and is responsible for guest accommodation requests and for any barrier created by Client's own layout, décor or equipment.

14. Force Majeure

Either party may terminate without liability if a circumstance beyond its control — war, government regulation, natural disaster, civil disorder or curtailment of transportation — makes it illegal or impossible to provide or use the facilities, on written notice delivered as soon as reasonably practical and no later than 10 days after learning of the basis. The primary remedy is a credit or reschedule; the reservation payment is `[refundable / non-refundable — pending]`; additional payments are eligible for refund. If Venue cancels for a reason not caused by Client, Client receives a full refund of amounts paid and help finding an alternative date or venue.

`[CALIFORNIA COUNSEL REVIEW — reservation-payment treatment on force majeure]`

15. General

California law applies. Before filing suit, the parties will attempt mediation in Santa Clara County, costs shared. Any lawsuit must be filed in Santa Clara County Superior Court. The prevailing party may recover reasonable attorney fees and costs. This Agreement and the signed quote are the entire agreement; changes must be in writing and signed by both. If any part cannot be enforced, the rest still applies. Venue's total responsibility is limited to the amount Client has paid, except for liability that cannot be limited by law.

`[CALIFORNIA COUNSEL REVIEW — liability limitation]`

Client has read this Agreement, has had the chance to ask questions, understands it gives up legal rights, and signs freely. The signer is at least 18 years old (21 if alcohol will be served) and, if signing for a company, is personally responsible for amounts owed.

CLIENT SIGNATURE & DATE	VENUE REPRESENTATIVE & DATE
PRINTED NAME	PRINTED NAME & TITLE